

IN THE SUPREME COURT OF APPEAL OF SOUTH AFRICA

BLOEMFONTEIN

Case No: _____

In the matter between:

PETER ANDREW FAUCITT

Applicant

and

JACQUELINE FAUCITT

First Respondent

DANIEL JAMES FAUCITT

Second Respondent

REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD

Third Respondent

REGIMA SKIN TREATMENTS CC

Fourth Respondent

VILLA VIA ARCADIA NO 2 CC

Fifth Respondent

STRATEGIC LOGISTICS CC

Sixth Respondent

FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK

Seventh Respondent

ABSA BANK LIMITED

Eighth Respondent

THE COMPANIES AND

INTELLECTUAL PROPERTY COMMISSION

Ninth Respondent

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NOTICE OF MOTION

TAKE NOTICE that the applicant intends to apply to the Supreme Court of Appeal, in terms of section 17(2)(b) of the Superior Courts Act 10 of 2013, for an order in the following terms:

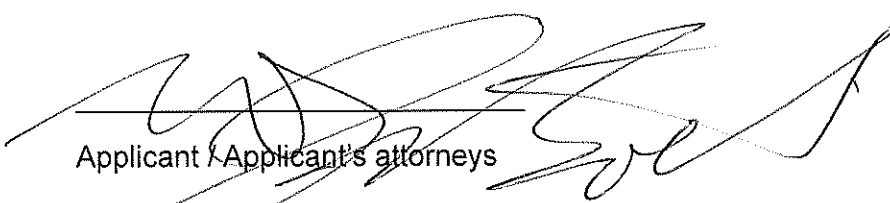
1. That the applicant be granted leave to appeal to the Supreme Court of Appeal against the whole of the judgment and order of the Honourable Mr Justice Labuschagne delivered electronically on 26 March 2026 under case number 2025/137857,
2. That, in the event that it is necessary, the applicant be granted condonation for any non-compliance with the rules of this Honourable Court relating to form, pagination, filing or service, and that the applicant be granted such further directions as this Honourable Court considers appropriate.
3. That the costs of this application be costs in the appeal, alternatively that the costs be paid by any respondent who opposes this application, jointly and severally, the one paying the other to be absolved.



4. Further and/or alternative relief.

TAKE FURTHER NOTICE that the accompanying affidavit of **PETER ANDREW FAUCITT** will be used in support of this application.

DATED at BLOEMFONTEIN on this 1ST day of JUNE 2026.


Applicant / Applicant's attorneys

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REF: FAUCITT

**AND TO: THE JUDGE PRESIDENT OF THE ABOVE HONOURABLE COURT
BLOEMFONTEIN**

AND TO: LERENA ATTORNEYS

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Ref: R LERENA/F012

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FOUNDING AFFIDAVIT

I, the undersigned,

PETER ANDREW FAUCITT

do hereby make oath and say:

1. I am the applicant in this application. I am an adult businessman and the applicant in the proceedings under case number 2025/137857 in the Gauteng Division of the High Court, Pretoria.
2. Save where the context indicates otherwise, the facts contained in this affidavit fall within my personal knowledge and are true and correct. Where I make legal submissions, I do so on the advice of my legal representatives, which advice I accept as correct.
3. This is an application for leave to appeal to the Supreme Court of Appeal in terms of section 17(2)(b) of the Superior Courts Act 10 of 2013. It arises from the refusal by Labuschagne J, on 4 May 2026, of my application for leave to appeal against his judgment and order of 26 March 2026.



4. The order refusing leave to appeal is attached marked 'FA1' and the reasons for that refusal is attached marked 'FA2'. The judgment and order sought to be appealed is attached marked 'FA3' and 'FA4'.
5. The application is brought because, with respect, the Court a quo adopted an unduly narrow interpretation of paragraph 2.5 of the order granted by Kumalo J on 19 August 2025 (which is attached marked 'FA5'), misapplied the legal test for civil contempt, elevated the Plascon-Evans rule in a manner which neutralised the burden-shifting mechanism recognised in *Fakie NO v CCII Systems (Pty) Ltd*, failed to consider the cumulative effect of the evidence, failed to have proper regard to the papers incorporated by reference into the contempt application, and then imposed a punitive costs order on considerations which were either legally irrelevant or unsupported by the evidence.
6. The respondent's own version, properly characterised, showed that she continued to involve herself in the stock, training, certification, employee and operational affairs of the business entities in circumstances where she was restrained from dealing with the business and administration of those entities, their employees, partners and clientele, in any manner in which prejudice may be sustained. That is the precise mischief which paragraph 2.5 of the order was designed to prevent.
7. The appeal would have reasonable prospects of success. At the least, there is a compelling reason why the appeal should be heard. The issues concern the interpretation and enforcement of an interim order regulating the control of business entities pending further proceedings, the relationship between the Plascon-Evans rule



and the evidential burden in contempt proceedings, and the circumstances in which punitive costs may be ordered against a party who approaches a court to vindicate compliance with an extant order.

8. For ease of reference, I shall refer to the order granted by Kumalo J on 19 August 2025 as "the August order"; the judgment of Labuschagne J delivered on 26 March 2026 as "the contempt judgment"; and the judgment delivered on 4 May 2026 refusing leave to appeal as "the leave judgment". I shall also refer to the heads of argument filed on my behalf in the application for leave to appeal, as "my leave heads".

B. THE AUGUST ORDER AND ITS PURPOSE

9. In terms of the August order the relevant portion is paragraph 2.5 the first and second respondents were interdicted and restrained from dealing with the business and administration of the third to sixth respondents, and/or their employees, and/or their partners, and/or their clientele, in any manner in which any may sustain any prejudice.
10. The August order's structure shows that it was designed to preserve and protect the businesses pending the final determination of Part B. Paragraphs 2.1 to 2.4 dealt with bank cards, bank accounts and payment facilities. Paragraph 2.6 authorised me to take control of the financial affairs of the third to sixth respondents. Paragraph 2.7 authorised me to appoint necessary experts, including the accountant cited in the founding affidavit to the interdict application, to conduct a forensic investigation. Paragraph 2.8.2 required the surrender of documentation, login details and passwords



relating to banking and online facilities. Paragraph 2.5 was the broader operational restraint which prevented prejudicial involvement in the business itself.

11. The Court *a quo* accepted, in the contempt judgment, that the August order existed and that the first respondent was aware of it. The Court recorded at paragraph [28] of the contempt judgment, that I had established the existence of the order and that the first respondent was aware of its terms. The dispute in this petition is therefore not whether there was an order or whether the first respondent knew of it. The dispute is whether the Court *a quo* correctly interpreted the order and correctly applied the contempt test to the established and admitted facts.

12. The background to the contempt application is set out in my founding affidavit in the contempt proceedings. At paragraph 4.4 of that affidavit, I expressly requested that the contempt application be read together with the previous applications and stated that the facts set out therein were directly relevant and were incorporated as if specifically repeated. That paragraph was of particular importance in the application for leave to appeal and is addressed in my leave heads at paragraph 12.3.

13. The incorporation was not cosmetic. The earlier papers furnished the context in which the August order was granted, the mischief it was directed to prevent, and the factual matrix against which paragraph 2.5 had to be interpreted. The Court *a quo* nevertheless stated in paragraph [5] of the contempt judgment, that the papers in the November 2025 proceedings did not serve before it and would be disregarded. With respect, that was a material misdirection because those papers had been expressly

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incorporated and because they were relevant to context, interpretation and the cumulative assessment of contempt.

C. THE CONTEMPT APPLICATION AND THE EVIDENCE

14. The contempt application was initially launched on 9 February 2026. The relief sought was a finding of contempt of the August order, and an appropriate sanction. Labuschagne J recorded this at paragraph [6] of the contempt judgment.

15. The founding affidavit explained that the first respondent was well aware of the August order and of the contents thereof. At paragraphs 7.1 to 7.3, I stated that she knew of the order, had signed two settlement agreements regarding it, and had nevertheless failed to comply with it. The Court a quo did not find against me on knowledge. On the contrary, knowledge was accepted at paragraph [28] of the contempt judgment.

16. The founding affidavit further explained the first respondent's interference with stock and stock-taking. At paragraphs 6.1 to 6.8, I explained that stock, packaging and raw materials were kept at the former common home, that stock had to be withdrawn from there to service business orders, that the first respondent prevented or sought to control that process, and that the prejudice was practical and immediate because orders could not be fulfilled if the business could not access stock. I stated that she would not allow a stocktake to be done and that this would prejudice the businesses because necessary stock would be missed and not replenished.



17. The founding affidavit also recorded that the first respondent had begun attending the offices almost daily, accompanied by a bodyguard, with a negative and prejudicial effect on staff morale and clientele. The point was not that presence alone was contempt. The point was that the presence was part of a broader pattern of operational interference and intimidation affecting employees, clientele and the functioning of the business.
18. The founding affidavit identified specific breaches at paragraphs 8.1 to 8.7 - they included frustrating fulfilment of orders, failing to surrender bank cards, removing Mphande's work phone, and acting in a manner which made it impossible for me to manage the entities without first facing prejudicial conduct from the first respondent. Those allegations were not isolated. They were advanced as evidence of repeated and deliberate non-compliance with the August order.
19. The contempt proceedings were thereafter supplemented and enrolled urgently in March 2026. In the founding affidavit in that urgent application, I explained that on or about 4 February 2026 the business attempted to perform a stock-take through one Mphande, who managed the storage and stock, but that the first respondent refused access to the stock. At paragraphs 6.3 to 6.6 I explained that not all stock could be accounted for and that the attempt at verification was frustrated.
20. The urgent founding affidavit also dealt with the training incidents on 23 and 24 February 2026. At paragraphs 8.1 to 8.4, I explained that the first respondent attended training at the office accompanied by a bodyguard. At paragraphs 10.1 to 10.11, I explained that one Gayane Williams was told to leave, that a Ms. Farrar was told to

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leave after attending on my instruction, that the first respondent argued with Ms Farrar in front of attendees, and that the bodyguard's presence contributed to the intimidation and disruption. At paragraphs 11.1 to 11.3, I recorded that the first respondent sat close to the presenter, made statements to attendees about theft of the company and formulations, passwords, exclusion, and alleged fraudulent websites and certificates. The prejudice lay in the undermining of the training function, the business reputation and the confidence of attendees.

21. The same urgent affidavit dealt with the further stock incidents of 4 and 5 March 2026.

At paragraphs 15.1 to 15.7, I explained that stock was required to fulfil orders, that the office communicated the required stock list to Mphande, that he indicated that the first respondent refused him access to the stockroom, and that without the stock the business would be unable to fulfil present orders. At paragraphs 16.1 to 16.7, I explained that the first respondent barred access to the stockroom and released only limited quantities of stock in her discretion. This evidence demonstrated precisely the kind of prejudicial operational involvement restrained by paragraph 2.5 of the August order.

22. The Court *a quo*'s own summary of the facts confirms that the case concerned stock control, training, certification and employee engagement. At paragraphs [8] to [11] of the contempt judgment, the Court recorded my case regarding the stocktake, the training of 23 and 24 February 2026, the instruction that Gayane Williams leave, the instruction that Ms Farrar leave, and the warning to attendees that certificates not signed by the first respondent were fraudulent. These were the incidents which required legal characterisation under paragraph 2.5 of the August order.

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23. The first respondent's answer did not amount to a denial that she was involved in those operational spheres. Rather, as the Court *a quo* recorded at paragraphs [21] to [23] of the contempt judgment, she said that she attended training because she was supervising Cherie Smith, that she was the only person authorised to sign training certificates, that Ms Farrar had no skincare or product training qualification and was asked to leave, that Ms Williams merely assisted with displays and samples and was also told her attendance was no longer required, and that Mr Mphande's phone was provided to her because her own phone had broken. Those facts, even on her version, demonstrated involvement in training, certification, staff participation and communications within the business contrary to paragraph 2.5 of the August order.

24. The Court *a quo* also recorded at paragraph [16] of the contempt judgment, the first respondent's version regarding 4 February 2026, namely that the ordinary product-order process had been followed and that products were collected and transported. At paragraphs [18] to [20], the Court recorded her version that on 4 March 2026 Ms Farrar delivered a product order form to Mr Mphande, that packaging was to occur by 6 March 2026, and that on 5 March 2026 she removed certain products.

25. The significance of these passages is that the first respondent's version still placed her in the stock and product-release process, and the Court should have asked whether that admitted involvement fell within paragraph 2.5 of the August order when read purposively and contextually.

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D. WHY LEAVE TO APPEAL SHOULD BE GRANTED

26. The error in the contempt judgment begins with interpretation. Paragraph 2.5 did not say that the first respondent was restrained only from causing actual, proved, quantified prejudice. It restrained her from dealing with the business and administration of the entities, and their employees, partners and clientele, in any manner in which any may sustain any prejudice. The words "in any manner" and "may sustain any prejudice" are preventative, protective and prospective. They are not confined to overt acts of final control or completed harm.

27. This is the interpretation advanced in argument in the court *a quo* - it was submitted that the language of paragraph 2.5 is broad and deliberately so; that it is not limited to formal acts of control or to conduct resulting in demonstrable harm; that it extends to engagement with the business or administration capable of causing prejudice; that the word "dealing" is wide; and that the reference to prejudice includes potential or prospective prejudice. Those submissions were not answered by the court *a quo* with the required interpretive analysis.

28. Instead, the leave judgment states at paragraphs [4] to [6] that I interpreted clause 2.5 too stringently, that the clause merely prohibits prejudicial conduct, that this was consistent with the first respondent's role as director, and that there was no prospect that another court would conclude that she was precluded from involvement in the businesses in any manner.



29. With respect, that reasoning mischaracterised my case. I did not contend for a sterile prohibition on all physical presence. I contended that her involvement in stock, training, certification, employees and communications was prejudicial dealing with the business and administration of the entities within the meaning of the order.

30. The phrase "consistent with her role as director" was itself a misdirection. The very purpose of the August order was to regulate and restrain the first respondent's exercise of powers or influence pending the determination of Part B. If her pre-existing role could justify the continuation of operational control over stock, training, certificates and employees, then paragraph 2.5 would be deprived of much of its effect. The order had to be interpreted in light of the mischief it addressed, not diluted by reference to the very role whose exercise had been restrained.

31. The second error concerns the test for contempt. In contempt proceedings the applicant must establish the order, knowledge and non-compliance. Once those requirements are established, wilfulness and *mala fides* are presumed and the respondent bears an evidential burden to raise a reasonable doubt. This was the structure emphasised in my argument by reference to authority. The Court *a quo* accepted order and knowledge, but did not approach non-compliance and wilfulness through that structure.

32. At paragraphs [24] to [28] of the contempt judgment, the Court stated that because criminal sanctions were sought, the criminal standard applied; that Plascon-Evans added to the burden; that contempt had to be established on the first respondent's

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version unless her version fell to be rejected; and that I had to establish both breach and wilfulness, neither of which had been established.

33. With respect, that formulation conflated two distinct enquiries. Plascon-Evans assists in resolving genuine disputes of fact in motion proceedings. It does not remove the burden-shifting structure of contempt once order, knowledge and non-compliance are shown.

34. The submission was that the Court treated the first respondent's version as effectively dispositive and thereby neutralised the evidential burden that should have rested on her once non-compliance was established. Another court is reasonably likely to find that the Court *a quo* imposed an unduly onerous burden on me and failed to interrogate whether the first respondent's explanation raised a reasonable doubt as to wilfulness and mala fides.

35. The problem is particularly acute because the first respondent's explanation was not that she acted inadvertently, without knowledge, by accident, or under a mistake as to the existence of the order. Her case, as summarised by the Court *a quo*, was that she was entitled or required to act as she did: to supervise training, to oversee the presenter, to sign certificates, to decide whether Ms Farrar and Ms Williams should remain, and to participate in the stock process. That is not a denial of intentional conduct. It is an asserted justification for intentional conduct.

36. The third error concerns the fragmented assessment of the evidence. The Court *a quo* dealt with stock, training, certificates, employees and the phone as discrete incidents, and treated each as insufficient. The correct approach was cumulative. Paragraph 2.5

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of the August order was directed at a pattern of prejudicial operational involvement in the business and administration of the entities. Stock control affects fulfilment and revenue. Training affects commercial reputation, professional relationships and the integrity of certification. Employee directions affect administration. Communications through the work phone affect logistics. Viewed together, the conduct was not trivial; it was the continuation of influence over the very areas from which the order restrained the first respondent.

37. It was submitted that the evidence showed interference with stock control processes, delayed or controlled release of stock, attendance at and interference with training sessions, prejudicial statements undermining the legitimacy of the business, and the assertion of authority over employees and operational processes. I further submitted that contempt is often established through a pattern of conduct and that another court is likely to adopt a holistic approach.

38. The leave judgment did not cure this difficulty. At paragraphs [8] to [10], Caselines Labuschagne J held that the stock issues disclosed a factual dispute, that there was no prejudicial dealing in breach of paragraph 2.5, that the training incident did not demonstrate prejudice, and that the first respondent's version was accepted under Plascon-Evans. With respect, that reasoning again treated the matter as though it turned on whether each incident, in isolation, demonstrated completed prejudice. It did not address the cumulative, preventative and contextual character of the order – I persist that each incident, even in isolation, should also constitute contemptuous conduct.

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39. The fourth error concerns the Court *a quo*'s refusal or failure to consider the earlier papers incorporated into the contempt founding affidavit. The leave judgment at paragraph [13], states that there was no merit in the submission that due weight had not been accorded to affidavits in the November 2025 court proceedings because those affidavits were in proceedings in which my application failed and because the later application relied on subsequent events. With respect, that misses the point. The earlier papers were not relied upon merely to prove later events. They were relied upon to provide context for the August order, the mischief it addressed, the course of conduct, and the proper interpretation of paragraph 2.5.

40. This is why it was submitted that an order must be construed in light of its language, context and purpose, and that the context was furnished by all the papers which served before the Court.

41. Another court could reasonably find that the Court *a quo*'s refusal to consider that context led directly to the narrow construction of paragraph 2.5. The order was interpreted as though it merely prevented completed acts of demonstrable prejudice. Had the Court considered the mischief addressed by the August order, it would have appreciated that the order was directed to preventing precisely the kind of continued operational interference that occurred through stock control, training, certification and engagement with employees.

42. The fifth error concerns costs. The contempt judgment imposed attorney and client costs against me. The reasoning appears at paragraphs [30] to [32]. The Court referred to the divorce particulars of claim and a forfeiture claim, then accepted that



"there is much to be said" for the submission that I was using contempt proceedings as an instrument to bolster my forfeiture claim. With respect, that conclusion was not justified on the papers and was an improper basis for punitive costs.

43. The contempt application concerned enforcement of a court order. Contempt is not merely an *inter partes* issue; it implicates the authority of the Court. The fact that the parties are spouses and that a divorce action is pending did not convert an application to enforce the August order into an abuse of process. There was a detailed factual foundation, supported by the sequence of stock, training and employee incidents. The application raised serious and *bona fide* issues. At most, if the Court considered the application unsuccessful, ordinary costs would have followed. Punitive costs required blameworthy conduct of a special kind; the Court did not identify such conduct with the precision required.

44. I submitted that punitive costs were reserved for cases involving dishonesty, *mala fides*, abuse of process or conduct deserving of special censure; that the contempt application served a public function; that the first respondent's own version confirmed ongoing involvement in business operations; and that the Court's reliance on the broader matrimonial dispute introduced an irrelevant consideration into the costs discretion. Another court could reasonably interfere with the punitive costs order.

45. The leave judgment did not engage with the punitive costs ground in substance. The leave judgment at paragraphs [14] to [17], Caselines simply concluded that there were no reasonable prospects of success and no compelling reason why the appeal should be heard, and then dealt with the wasted costs of 16 April 2026. With respect, the

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failure to engage with the punitive costs issue separately is itself a reason why this Court should grant leave. Even if the appeal on contempt were considered speculative (which I deny), the punitive costs order is independently appealable and vulnerable.

E. THE RESPONDENT'S OPPOSITION AND THE REAL ISSUES ON APPEAL

46. The first respondent's opposition to leave was that the application lacked merit, failed to identify a misdirection, and was an attempt to revisit a factual determination. The grounds are not a mere dissatisfaction with factual findings. They concern the interpretation of paragraph 2.5, the legal consequences of admitted conduct, the relationship between Plascon-Evans and the operative evidential burden, the failure to consider incorporated papers, the cumulative assessment of evidence, and the improper exercise of the costs discretion.

47. The respondent also sought to characterise the case as a broader commercial-control dispute dressed up as contempt. That characterisation should not obscure the existence of the August order. Once a court order exists, is known to the respondent, and regulates conduct pending further proceedings, the respondent cannot answer alleged breaches by saying that the dispute is commercial or matrimonial in character. The nature of the underlying dispute is precisely why the interim order existed. It does not lessen the obligation to comply.

48. There is a reasonable prospect that the Supreme Court of Appeal, or another court of appeal, would hold that paragraph 2.5 should be interpreted broadly and purposively; that the first respondent's own version established operational involvement in the

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restrained areas; that non-compliance was established; that the evidential burden then shifted to the first respondent; that her justification did not raise a reasonable doubt because she deliberately acted in the spheres regulated by the order; and that the punitive costs order was not judicially exercised.

F. REASONABLE PROSPECTS, COMPELLING REASONS AND PRACTICAL EFFECT

49. The appeal would also have practical effect. The August order remains relevant pending the final determination of Part B and the underlying disputes. The interpretation adopted by the Court *a quo* affects the ongoing enforceability of the order. If the first respondent may continue to involve herself in stock, training, certification and employee decisions on the basis that such involvement is consistent with her historic role, the protective utility of paragraph 2.5 is materially undermined.

50. There is, in addition, a compelling reason for the appeal to be heard. Interim orders regulating business affairs during family or shareholder disputes are common. Their practical utility depends on courts giving effect to preventative language and enforcing restraints before the harm becomes irreversible. The issues raised by this petition are therefore not private in the narrow sense. They concern the enforceability of court orders, the role of contempt proceedings in vindicating judicial authority, and the proper approach to admitted conduct in motion proceedings.

51. I submit that the matter raises important issues about the enforcement of court orders, the application of *Plascon-Evans* in contempt proceedings, and the practical effect of

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interim interdictory relief in a commercial context. The leave judgment did not grapple with them meaningfully and simply concluded that no compelling reason existed.

52. The relief sought in this petition is appropriately directed to the Supreme Court of Appeal. Although my application for leave to appeal in the High Court sought leave to appeal to the Supreme Court of Appeal, alternatively to the Full Court, the nature of the issues, the punitive costs order, and the interaction between Plascon-Evans and civil contempt justify leave to the Supreme Court of Appeal. In any event, if this Honourable Court considers that another appellate forum is more appropriate, I respectfully seek such directions as may be proper.

53. I confirm that this affidavit is intended to furnish this Honourable Court with the information necessary to decide the application for leave. It is not intended to serve as the appeal record. The necessary judgments and orders are annexed or identified.

54. For the reasons set out above, I respectfully submit that the contemplated appeal has reasonable prospects of success within the meaning of section 17(1)(a)(i), alternatively that there is a compelling reason why the appeal should be heard within the meaning of section 17(1)(a)(ii). The refusal of leave by the Court a quo should therefore not be the final word on the matter.

G. SPECIFIC RESPONSE TO THE REASONS GIVEN IN THE LEAVE JUDGMENT

55. I deal specifically with the leave judgment because the petition is directed to this Honourable Court after leave was refused by the Court a quo. At paragraph [1] of the

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leave judgment, Labuschagne J records that the contempt application was dismissed because I had not established a breach of the order or wilful disregard thereof. That formulation is precisely the issue: the Court treated breach and wilfulness as if they had to be proved by me to finality on the first respondent's version, instead of first deciding whether the established and admitted conduct amounted to non-compliance and, if so, whether the first respondent had raised a reasonable doubt as to wilfulness and *mala fides*.

56. At paragraph [2] of the leave judgment, the Court characterised my application for leave as pursuing only two themes. With respect, that compression obscured the breadth of the grounds. The themes of interpretation and Plascon-Evans were important, but they were connected to further grounds: the treatment of the incorporated papers, the failure to evaluate the cumulative pattern of conduct, the legal consequences of the first respondent's own admissions, the failure to apply the evidential burden, and the punitive costs order.

57. At paragraphs [3] to [6] of the leave judgment, the Court held that I placed too stringent an interpretation on paragraph 2.5.

58. The difficulty is that the Court did not first identify the ordinary meaning of "dealing", "business", "administration", "employees", "clientele", "in any manner" and "may sustain any prejudice". Nor did it explain why the conduct relating to stock release, training supervision, certification, employee exclusion and statements to attendees fell outside those words. Another court may well find that the language of paragraph 2.5

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is wide enough to cover those forms of involvement and that the Court *a quo*'s conclusion was reached without the required interpretive analysis.

59. At paragraph [6] of the leave judgment, the Court stated that paragraph 2.5 does not say that the first respondent is precluded from being involved in the businesses in any manner. That statement answers a case I did not advance. The relevant question was not whether the first respondent was prohibited from any involvement whatsoever, however innocuous.

60. The question was whether the particular involvement proved or admitted in relation to stock, training, certificates, employees and communications was dealing with the business or its administration in a manner in which prejudice may be sustained. The appeal has reasonable prospects because another court could answer that question differently.

61. At paragraph [7] of the leave judgment, the Court recognised the principle that once an applicant has established the existence of a court order, knowledge and breach, a presumption arises as to wilfulness. Yet at paragraphs [8] to [12], the Court reverted to treating the first respondent's version as determinative before properly determining whether her own version disclosed non-compliance. The burden-shifting principle was acknowledged in the abstract but not applied to the facts.

62. At paragraph [8] of the leave judgment, the Court held that, as far as stock was concerned, the first respondent and Mr Mphande confirmed that everything took place as it usually did.

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63. With respect, the point of paragraph 2.5 was to prevent the first respondent from continuing to control, supervise, delay or influence operational processes in a prejudicial manner. If the first respondent's answer is that she was entitled to continue participating in the process because it was usual, *then the August order is deprived of practical content*. The appeal court may find that the Court a quo asked the wrong question.

64. At paragraph [9] of the leave judgment, the Court held that the training incident did not demonstrate prejudice to the business and accepted the first respondent's version. That conclusion does not engage with the evidence that she asserted authority over who could attend, challenged or displaced employees, claimed unique authority over certificates, and made statements to attendees undermining the legitimacy of the business and its processes. It also does not engage with the prospective wording "*may sustain any prejudice*". A court of appeal may find that actual proved damage to the business was not required.

65. At paragraphs [10] to [12] of the leave judgment, the Court held that the normal application of Plascon-Evans took place and that there was nothing contentious about applying that rule to disputed facts. I respectfully accept that genuine disputes of fact in motion proceedings are ordinarily approached through Plascon-Evans. My complaint is not that Plascon-Evans is irrelevant. My complaint is that the *Court a quo* applied it as though it were the complete answer to a contempt enquiry, even where the first respondent's own version disclosed the conduct which required legal characterisation under the order.



66. At paragraph [13] of the leave judgment, the Court rejected the relevance of affidavits in the November 2025 proceedings. With respect, this reasoning again treats the earlier papers as though they were relied upon only to prove later events. They were also relevant to the contextual interpretation of the August order and to the mischief that paragraph 2.5 was designed to address. The failure to appreciate that distinction is a material misdirection and gives the appeal reasonable prospects.

67. At paragraphs [14] and [15] of the leave judgment, the Court concluded that there were no reasonable prospects and no compelling reasons to merit leave to appeal. With respect, that conclusion follows only if the Court's narrow interpretation, its application of Plascon-Evans, and its refusal to consider the incorporated context are correct. If any of those premises is wrong, the refusal of leave cannot stand. This is why the petition should be granted.

68. The order of 4 May 2026, dismissed leave with costs on the party and party scale, Scale C, subject to the wasted costs order. This petition seeks to place before this Honourable Court the full reasons why that refusal should be set aside and why leave should be granted.

H. TIMEOUSNESS, FORM AND ANNEXURES

69. This application is brought as a petition under section 17(2)(b) of the Superior Courts Act. I am advised that such an application must be lodged within the period prescribed by the Act and the rules of this Honourable Court. On the information presently available to me, the leave judgment was delivered on 4 May 2026. If this application

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is lodged outside any applicable period, I respectfully seek condonation and ask that this affidavit also stand as the affidavit in support of condonation, supplemented if necessary by my attorneys with the filing chronology and explanation for any delay.

70. Any delay, if there is one, is not wilful or contumelious. The matter required the preparation of a concise but complete petition from a substantial record, including the August order, the contempt papers, the urgent supplementation, the answering and replying papers, the contempt judgment, the leave application, the leave heads, the opposing heads and the leave judgment. The issues are important, the first respondent will suffer no irremediable prejudice from the matter being determined on its merits, and the prospects of success and compelling reasons set out above justify condonation if it is required.

71. In all the circumstances, the interests of justice favour the grant of leave. The appeal is not academic. It will determine whether the August order has the protective scope for which it was granted, whether a restrained party may justify admitted operational involvement by reference to her own view of necessity, and whether a litigant who brings a bona fide contempt application to enforce an order may be punished with attorney and client costs on the basis of inferences drawn from a broader matrimonial dispute.

WHEREFORE I pray for an order in terms of the Notice of Motion

A handwritten signature in black ink, appearing to be 'P. H. K.' followed by a small flourish or mark.

DEPONENT

P. M. M. M.

THUS SIGNED AND SWORN to before me at PRETORIA on this 21 day
of MAY 2026, the deponent having acknowledged that he knows and
understands the contents of this affidavit, has no objection to taking the prescribed oath,
and considers the oath to be binding on his conscience.

COMMISSIONER OF OATHS

Full names: R. K.

Capacity: _____

Address: _____

COMMISSIONER OF OATHS (RSA)
RÚAN KOK
Attorney
Van der Walt Attorneys
Unit 11 Garsfontein Office Park
645 Jacqueline Drive, Garsfontein, Pretoria

P. M. M. M.



IN THE HIGH COURT OF SOUTH AFRICA
(GAUTENG DIVISION, PRETORIA)

CASE NO: 25/137857

PRETORIA, ON THIS THE 4TH MAY 2026

BEFORE THE HONOURABLE JUSTICE LABUSCHAGNE

In the matter between:

PETER ANDREW FAUCITT

Applicant

And

JACQUELINE FAUCITT

First Respondent

DANIEL JAMES FAUCITT

Second Respondent

REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD

Third Respondent

REGIMA SKIN TREATMENTS CC

Fourth Respondent

VILLA VIA ARCADIA NO. 2 CC

Fifth Respondent

(Registration Number: 1996/004451/23)

STRATEGIC LOGISTICS CC

Sixth Respondent

(Registration Number: 2008/136496/23)

FIRSTRAND BANK LIMITED

t/a FIRST NATIONAL BANK

Seventh Respondent

ABSA BANK LIMITED

Eighth Respondent

THE COMPANIES AND INTELLECTUAL
PROPERTY COMMISSION

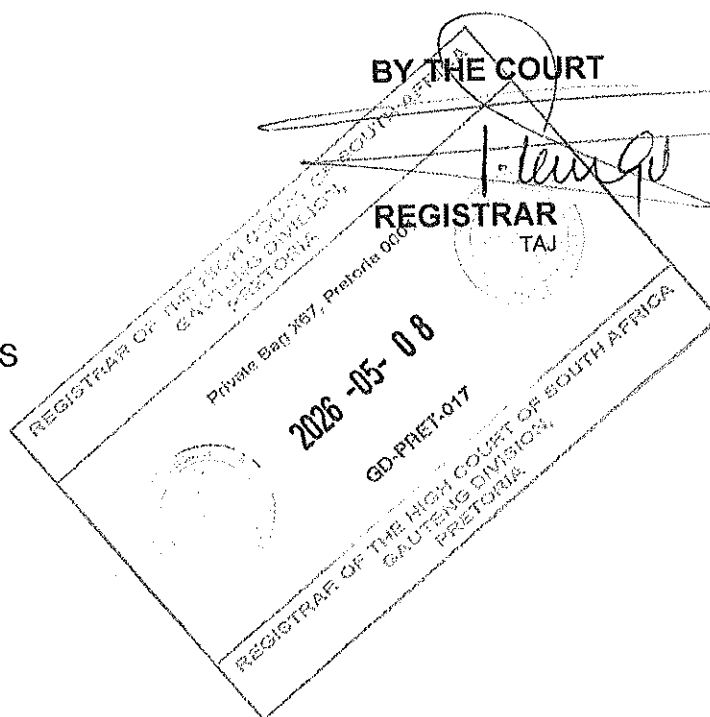
Ninth Respondent

HAVING HEARD Counsel for the Parties and having read the application for Leave to Appeal against the judgment of the Honourable Justice **KHUMALO** delivered on **19 AUGUST 2025**.

IT IS ORDERED THAT**JUDGMENT**

1. The application for Leave to Appeal is dismissed with costs on a party and party scale, Scale C, subject to paragraph 2 below.
2. Mrs Faucitt is to pay the wasted costs of 16 April 2026 on a party and party scale, Scale C.

ATT: ELLIOT ATTORNEYS

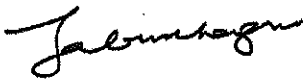


"FA2"



IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

Case No: 2025/137857

(1)	REPORTABLE: YES/NO
(2)	OF INTEREST TO OTHER JUDGES: YES/NO
(3)	REVISED.
	
04 MAY 2026	
.....	
SIGNATURE	DATE

In the matter between:

PETER ANDREW FAUCITT

Applicant

and

JACQUELINE FAUCITT

First Respondent

DANIEL JAMES FAUCITT

Second Respondent

REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD

Third Respondent

REGIMA SKIN TREATMENTS CC

Fourth Respondent

VILLA VIA ARCADIA NO. 2 CC
(Registration Number: 1996/004451/23)

Fifth Respondent

STRATEGIC LOGISTICS CC
(Registration Number: 2008/136496/23)

Sixth Respondent

FIRSTRAND BANK LIMITED
t/a FIRST NATIONAL BANK

Seventh Respondent

ABSA BANK LIMITED

Eighth Respondent

THE COMPANIES AND INTELLECTUAL
PROPERTY COMMISSION

Ninth Respondent

LEAVE TO APPEAL: JUDGMENT

LABUSCHAGNE J:

- [1] The applicant brought an application based on contempt of clause 2.5 of a court order granted by Khumalo J on 19 August 2025. I dismissed the application on the grounds that the applicant did not establish a breach of the court order or a wilful disregard thereof.
- [2] Mr Faucitt now applies for leave to appeal. In a lengthy notice of leave to appeal two themes are pursued.
- [3] The **first theme** is that I erred in my interpretation of clause 2.5 of the court order. The order relates to the family business in which Mr and Mrs Faucitt are office bearers.
- [4] Mr Faucitt interprets clause 2.5 to mean that Mrs Faucitt cannot not be involved in an executive role in any respect. The clause is expressly aimed at preventing prejudicial dealings. It is an undefined term and Mr Faucitt has sought to construe a breach in circumstances where the facts do not support his contentions. He objects to her presence even at training while, she was involved in training for a lengthy period.

- [5] Mr Faucitt has placed too stringent an interpretation upon clause 2.5. What is apparent is that the clause merely prohibits prejudicial conduct. This is consistent with her role as director. The conduct which, according to Mr Faucitt, falls within the ambit of clause 2.5 ,was disputed.
- [6] What clause 2.5 of the court order does not say is that Mrs Faucitt is precluded from being involved in the businesses in any manner. There is no prospect of another court coming to a different conclusion in this regard.
- [7] The **second theme** relates to the application of the *Plascon-Evans* rule. This is raised specifically in the context of contempt where the principle is that, once an applicant has established that a court order exists, which the respondent is aware of, and that it has been breached, a presumption arises of wilfulness which needs to be rebutted.
- [8] As far as the incidents upon which Mr Faucitt relies is concerned, he cannot give direct evidence as he was not present. The factual versions as far as the stock issues are concerned indicate that there is a dispute on what transpired. However, Mrs Faucitt, corroborated by the company employee responsible for stock delivery, has confirmed that as far as the stock was concerned, everything took place as it usually did. There was no prejudicial dealing in breach of clause 2.5.
- [9] So too the training incident relied upon does not demonstrate prejudice to the business . The version of events put forward by Mrs Faucitt was accepted.

- [10] I decided these facts on the *Plascon-Evans* basis, namely the version advanced by the respondent. In doing so, the normal application of *Plascon-Evans* took place. The applicant needs to establish a breach of the court order and, whether the facts are not common cause, the version of the respondent is accepted, unless it falls to be rejected. No basis for rejecting the respondent's version could be advanced.
- [11] In light of the aforesaid the applicant has not established the breach of the court order and the explanation given demonstrates that Mr Faucitt has been trying to make mountains out of molehills.
- [12] There is nothing contentious in applying the *Plascon-Evans* rule to the establishment of facts which are disputed in motion proceedings. The applicant does not establish a breach by his mere say-so, particularly if his version is disputed. How such a dispute is resolved in motion proceedings, is trite.
- [13] It was also submitted that I did not accord due weight to affidavits referred to in November 2025 court proceedings. There is no merit to this position. Those affidavits were in court proceedings in which the applicant's application failed. The applicant relied on subsequent events as basis for enrolling an application dated 9 February 2026 urgently. Why the November affidavits are relevant in deciding what the subsequent facts and grounds for urgency were, has not been established.
- [14] Having considered all the submissions advanced, I am not persuaded that there are reasonable prospects of another court coming to a different

conclusion. I am not persuaded that there is another compelling reason why the appeal should be heard.

[15] In the premises the application for leave to appeal must fail.

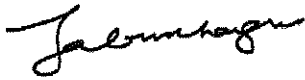
COSTS

[16] The application for leave to appeal was scheduled for 16 April 2026. It was heard virtually. At the hearing new counsel for Mrs Faucitt asked for time as he had just been briefed and the argument was postponed until 22 April 2026. As Mr Faucitt had incurred costs in respect of the 16th of April 2026 hearing, those costs were reserved. The postponement of the application on 16 April 2026 was brought about by Mrs Faucitt's late instruction of new legal representatives, and she therefore needs to pay the wasted costs of that hearing.

CONCLUSION

[17] In the premises I make the following order:

1. The application for leave to appeal is dismissed with costs on a party and party scale, Scale C, subject to paragraph 2 below.
2. Mrs Faucitt is to pay the wasted costs of 16 April 2026 on a party and party scale, Scale C.



LABUSCHAGNE J
JUDGE OF THE HIGH COURT

APPEARANCES

COUNSEL FOR APPLICANT : ADV COETSEE
ATTORNEY FOR APPLICANT : ELLIOT ATTORNEYS INC

COUNSEL FOR RESPONDENT : ADV NEL
ATTORNEY RESPONDENT : BURGERS HUYSER ATTORNEYS
BEDFORDVIEW INC

"FA3"



IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

Case No: 2025/137857

- (1) Reportable: No
(2) Of interest to other Judges: No
(3) Revised: Yes

26/03/2026

Signature

Date

In the matter between:

PETER ANDREW FAUCITT

Applicant

and

JACQUELINE FAUCITT

First Respondent

DANIEL JAMES FAUCITT

Second Respondent

REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD

Third Respondent

REGIMA SKIN TREATMENTS CC

Fourth Respondent

VILLA VIA ARCADIA NO. 2 CC
(Registration Number: 1996/004451/23)

Fifth Respondent

STRATEGIC LOGISTICS CC
(Registration Number: 2008/136496/23)

Sixth Respondent

FIRSTRAND BANK LIMITED
t/a FIRST NATIONAL BANK

Seventh Respondent

ABSA BANK LIMITED

Eighth Respondent

**THE COMPANIES AND INTELLECTUAL
PROPERTY COMMISSION**

Ninth Respondent

JUDGMENT

LABUSCHAGNE J:

- [1] The applicant and the first respondent are married in community of property and are both office bearers in a family business involving the manufacture, distribution and marketing of skincare products. The parties are in the process of getting divorced.
- [2] The applicant applied in the urgent court in the week of 16 to 20 March 2026 for urgent relief. He seeks to enrol an application of 09 February 2026, on supplemented paper, to obtain relief against the first respondent, based on contempt of court.
- [3] The court order alleged to have been breached is one dated 19 August 2025 under the same case number and between the same parties. In that order, Kumalo J granted interim relief, pending Part B of the notice of motion (which still needs to be decided) containing interdicts against the first and second respondent(their son). These interdicts direct the respondents to surrender

bank cards, to refrain from opening new banking accounts for the third to the sixth respondents and authorising the applicant to take control of the financial affairs of the third to the sixth respondents.

- [4] This order was obtained *ex parte* and only one paragraph thereof is relevant in the current proceedings, namely Clause 2.5 which reads:

“2.5 The first and second respondents are interdicted and restrained from dealing with the business (and the administration thereof) of the third to sixth respondents, and/or their employees, and/or their partners, and/or their clientele, in any manner in which any may sustain any prejudice.”

- [5] After the granting of the aforesaid order, the applicant brought an urgent application in November 2025, which was dismissed. Part of the papers in those proceedings were invoked in the argument before me. As those papers do not serve before me, I disregard them.

- [6] The applicant is seeking relief based on the notice of motion of 09 February 2026 declaring the first respondent to be in contempt of the order issued by Kumalo J on 19 August 2025, ordering her to be committed to prison for six months or such other period as the court deems appropriate. As an alternative the applicant seeks an order for six months incarceration, suspended for five years. As a further alternative the applicant seeks the imposition of a fine and punitive costs.

THE FACTS

- [7] The applicant moved out of the common home on 26 January 2026.
- [8] On 04 February 2026, the applicant contends that an employee, Oliver Mphande (also referred to as "Arthur") attempted to perform a stocktake. The applicant contends that the first respondent interfered as the first respondent insists on being present in the stockroom. This is the first incident relied upon in the contempt proceedings.
- [9] The second incident was on 23 and 24 February 2026 when the first respondent attended training held at the office. The training was being presented by Cherie Smith. The applicant contends that the first respondent's presence was not required. At the training a Ms Farrar and Ms Gayane Williams were present. The first respondent told Ms Gayane Williams that her presence was not needed. The applicant contends that she attends most of the training as she generally manages the slides and onscreen presentations.
- [10] The applicant contends that the first respondent is guilty of breaching Clause 2.5 of the court order. Ms Farrar was also told to leave, but upon instructions of the applicant reattended. The first respondent again instructed her to leave.
- [11] Ms Williams and Ms Farrar reported to the applicant that the first respondent warned the attendees that the certificates they received for attendance were not signed by her personally. The certificates were fraudulent.
- [12] The first respondent's affidavit paints a different picture. With reference to the order of Kumalo J, the first respondent confirms that, even prior to that

application having been brought (which was brought *ex parte*), she surrendered all bank cards alluded to in that interdict. The first respondent contends that this application for contempt amounts to an abuse of process and she accuses the applicant of perjury.

- [13] The applicant, the first respondent and their son (the second respondent) are involved in a business in the skincare industry. The third respondent is engaged in the distribution and supply of RegimA Skin Treatment, manufactured and sold by the fourth respondent, supplied and packaged by the sixth respondent. The fifth respondent is a property holding company which property is the operational base from which the third, fourth and sixth respondents conduct the aspects of their business activities. The first respondent established training facilities and programmes for therapists and skincare professionals.
- [14] After the August order by Kumalo J, a mediation process followed and settlement agreements were entered into in September 2025 pertaining to the third, fourth and fifth respondents. A defined procedure was agreed. The settlement agreements are in the process of being made orders of court. The applicant brought an urgent application on 04 November 2025 seeking a variation of the interim order, but that application was dismissed.
- [15] On 09 February 2025 the applicant instituted an application for contempt, and it is that application which the applicant now seeks to be enrolled on the grounds of urgency.

- [16] The first respondent's expressly denies that she interfered with any stocktake by Mr Mphande. Mr Mphande filed an affidavit confirming this. The applicant was not present and the factual basis for his allegations of breach of the court order is therefore incorrect. The general practice was followed in this instance. On 04 February 2026 a RegimA Stockist Product Order Form was sent to Mr Mphande, requesting collection of specified products from the Warehouse, to package them, to load the packaged products onto a delivery vehicle, after which the applicant would drive the delivery vehicle to the Warehouse of the fourth respondent. The first respondent provided a RegimA Stockist Product Order Form which records the products removed from the Warehouse on 04 February 2026. These products were collected by the applicant and transported to the Warehouse of the fourth respondent on 04 February 2026.
- [17] The applicant further contends that on 04 and 05 March 2026 the first respondent prevented Mr Mphande from performing a stocktake.
- [18] On 04 March 2026 Ms Farrar delivered a RegimA Stockist Product Order Form to Mr Mphande. Shortly thereafter the applicant arrived at the communal home insisting on immediate packaging of the products. Mr Mphande responded that he would commence collecting and packaging the products but needed time until 06 March 2026 to deliver. The applicant appeared satisfied with Mr Mphande's undertaking and left the premises. At that time the applicant did raise the issue of his unpaid salary with the applicant. There was no interference with the order that was placed.

- [19] On 05 March 2026 the applicant again attended the communal home and engaged with Mr Mphande in the Warehouse, insisting on immediate delivery of the products he had come to collect. The applicant removed certain products, and Mr Mphande provided a list of the number of products so removed as an annexure to the answering affidavit.
- [20] On 06 March 2026 the order was completed by delivery to the Warehouse of the fourth respondent. This evidence too does not indicate any disruption of the stocktake or of delivery by the first respondent.
- [21] Regarding the alleged disruption of training on 23 and 24 February 2026, the first respondent explains that she has started training Ms Cherie Smith to assume the responsibility of presenting training sessions in due course. Ms Smith is however being supervised as she is not ready to present the training independently and without the assistance of the first respondent. The first respondent. The first respondent consequently continues attending training sessions to provide guiding an oversight both to the presenters and to the attendees. The first respondent is the only person within the fourth respondent authorised to sign training certificates issued to therapists and skincare technicians who have completed training.
- [22] According to the first respondent Ms Farrar is an accountant with no experience or qualifications in respect of skincare or product training, whose attendance at training sessions was to ensure that refreshments are available. The first respondent consequently asked Ms Farrar to leave the training. Similarly, Ms Williams merely assists setting up the product displays and

distributing samples of course materials. She has no involvement in the training itself. She was also advised that her attendance was no longer required. This is confirmed by an affidavit of Mr Tshabalala, the first respondent's bodyguard.

- [23] There is an allegation that the first respondent has taken Mr Mphande's work mobile phone from him, thereby frustrating communication between Mr Mphande and the business. Mr Mphande's affidavit confirms that the applicant's phone had broken and that he had offered a phone to her, as he has an alternative phone at his disposal.

THE REQUIREMENTS FOR CONTEMPT PROCEEDINGS

- [24] As the applicant seeks criminal sanctions against the first respondent, the onus applicable in criminal proceedings applies. The applicant needs to establish contempt of court beyond reasonable doubt.
- [25] What is more, the applicant bears the aforesaid onus in motion proceedings. The *Plascon-Evans* rule adds to the burden upon the applicant of establishing contempt. He must establish contempt of court on the version of the first respondent, unless it falls to be rejected.
- [26] Despite valiant arguments by counsel for the applicant as to why the first respondent's version is not an impediment to the granting of relief to the applicant, the applicant has not established the contempt in question.

[27] I am satisfied that the first respondent's version, supported as it is by affidavits of Mr Mphande and Mr Tshabalala, dispels any concerns about wilful disregard of the order of Kumalo J.

[28] The requirements for contempt of court are trite. In these proceedings the applicant has established the existence of a court order (the order of Kumalo J), and that the first respondent is aware of the terms thereof. What the applicant further needs to establish is a breach of that court order and that such breach was wilful. Neither the breach nor wilfulness has been established.

[29] In the premises the application cannot succeed.

COSTS

[30] In the particulars of claim of the divorce proceedings (which are annexed to the papers before me), the applicant seeks a forfeiture of the benefits of the marriage in community of property as far as the businesses are concerned. A 15% forfeiture is claimed.

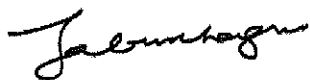
[31] The applicant has now on numerous occasions approached the court on an urgent basis for relief that cannot be substantiated. Counsel for the first respondent contends that the applicant is utilising contempt proceedings without substance as an instrument to bolster his claim for forfeiture in the pending divorce. There is much to be said for this and the conduct of the applicant in this regard is to be deprecated. The urgent application therefore warrants a cost order on a punitive scale.

CONCLUSION

[32] In the premises the application fails with costs on a punitive scale.

[33] I consequently make the following order:

1. The application is dismissed.
2. The applicant is directed to pay the costs of the application on the scale as between attorney and client.



LABUSCHAGNE J

JUDGE OF THE HIGH COURT

APPEARANCES

COUNSEL FOR APPLICANT : ADV COETSEE
ATTORNEY FOR APPLICANT : ELLIOT ATTORNEYS INC

COUNSEL FOR RESPONDENT : ADV NEL
ATTORNEY RESPONDENT : BURGERS HUYSER ATTORNEYS
BEDFORDVIEW INC



"FA4"

**IN THE HIGH COURT OF SOUTH AFRICA
(GAUTENG DIVISION, PRETORIA)**

CASE NO: 137857/2025

PRETORIA 26 MARCH 2026

BEFORE THE HONOURABLE JUSTICE LABUSCHAGNE

In the matter between:

PETER ANDREW FAUCITT
ID: 520430 5708 18 5

APPLICANT

AND

JACQUELINE FAUCITT
ID: 570607 0898 18 1

1ST RESPONDENT

DANIEL JAMES FAUCITT
ID: 820715 5300 18 2

2ND RESPONDENT

REGIMA WORLDWIDE DISTRIBUTION
(PTY) LTD
(REG NO: 2011/005722/07)

3RD RESPONDENT

REGIMA SKIN TREATMENTS CC
(REG NO: 1992/005371/23)

4TH RESPONDENT

VILLA VIA ARCADIA NO 2 CC
(REG NO: 1996/004451/23)

5TH RESPONDENT

STRATEGIC LOGISTICS CC
(REG NO: 2008/136496/23)

6TH RESPONDENT

FRISTRAND BANK LIMITED
t/a FIRST NATIONAL BANK

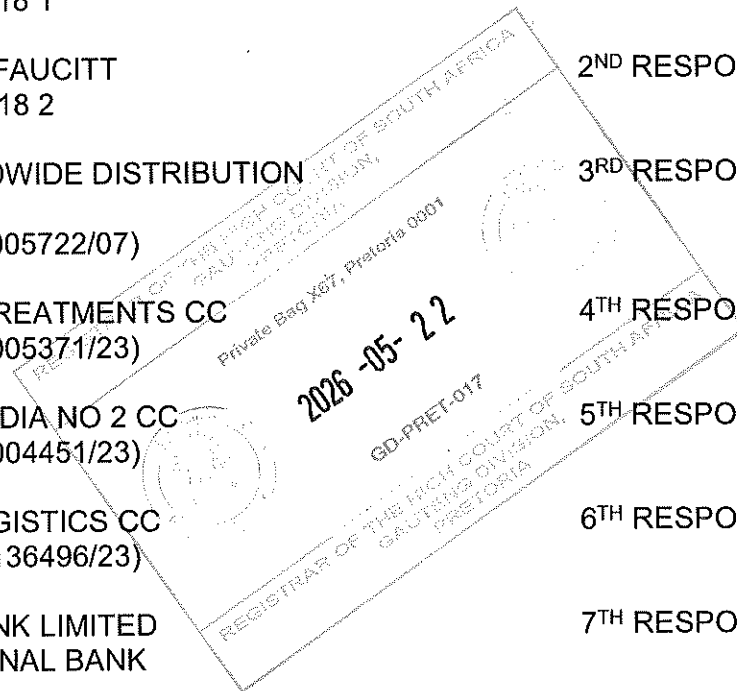
7TH RESPONDENT

ABSA BANK LIMITED

8TH RESPONDENT

THE COMPANIES AND INTELLECTUAL
PROPERTY COMMISSION

9TH RESPONDENT



HAVING HEARD counsel for the parties and having read the application for leave to appeal against the judgment of the Honourable Justice **KHUMALO** delivered on **19 AUGUST 2025**.

IT IS ORDERED THAT

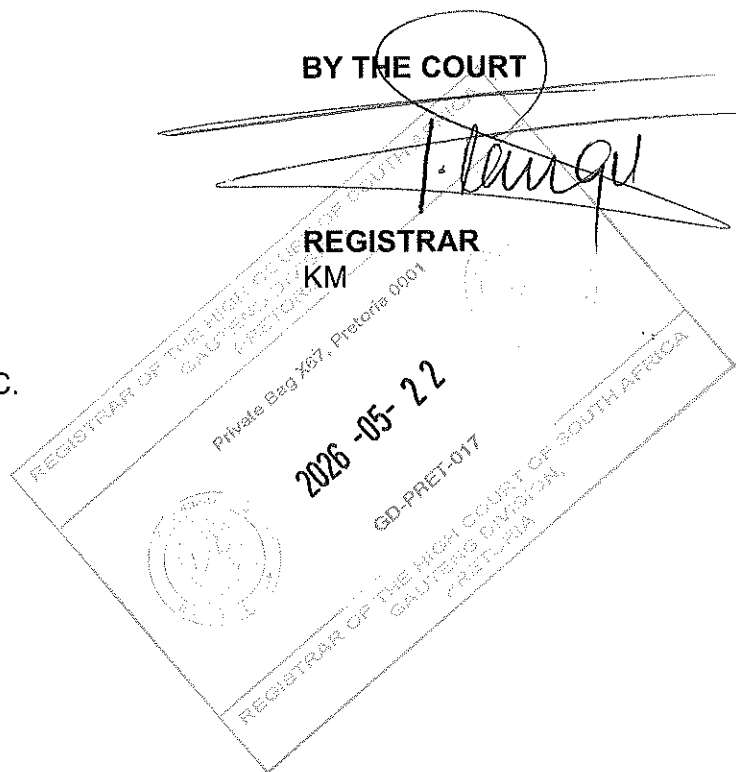
JUDGMENT

1. The application is dismissed.
2. The applicant is directed to pay the costs of the application on the scale as between attorney and client scale.

BY THE COURT

**REGISTRAR
KM**

ATT: ELLIOT ATTORNEYS INC.



"FAS"

IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

BEFORE THE HONOURABLE JUSTICE KUMALO J
ON THIS 19th OF AUGUST 2025
NUMBER 20 ON THE ROLL

CASE NO: 2025 - 137857

In the *ex parte* matter between:

PETER ANDREW FAUCITT

APPLICANT

(Identity Number: 520430 5708 18 5)

And

JACQUELINE FAUCITT

(Identity Number: 570607 0898 18 4)

DANIEL JAMES FAUCITT

(Identity Number: 820715 5300 18 2)

REGIMA WORLDWIDE DISTRIBUTION

(PTY) LTD

(Registration Number: 2011/005722/07)

REGIMA SKIN TREATMENTS CC

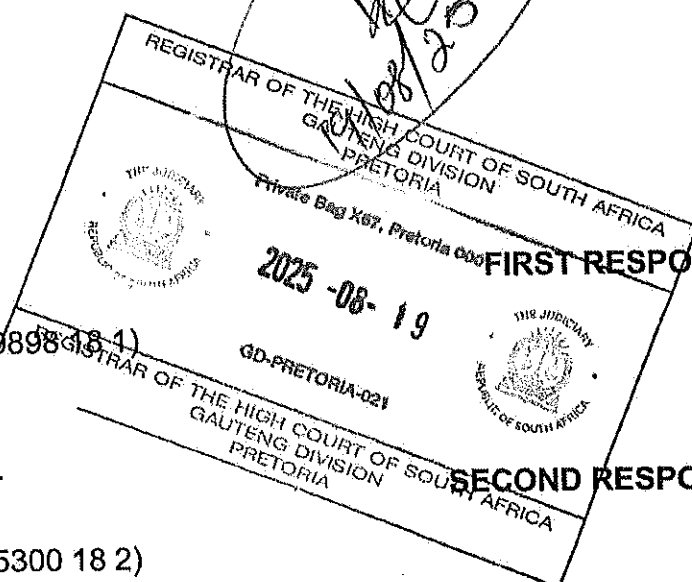
(Registration Number: 1992/005371/23)

FIRST RESPONDENT

SECOND RESPONDENT

THIRD RESPONDENT

FOURTH RESPONDENT



VILLA VIA ARCADIA NO 2 CC

FIFTH RESPONDENT

(Registration Number: 1996/004451/23)

STRATEGIC LOGISTICS CC

SIXTH RESPONDENT

(Registration Number: 2008/136496/23)

**FIRSTRAND BANK LTD t/a FIRST NATIONAL
BANK**

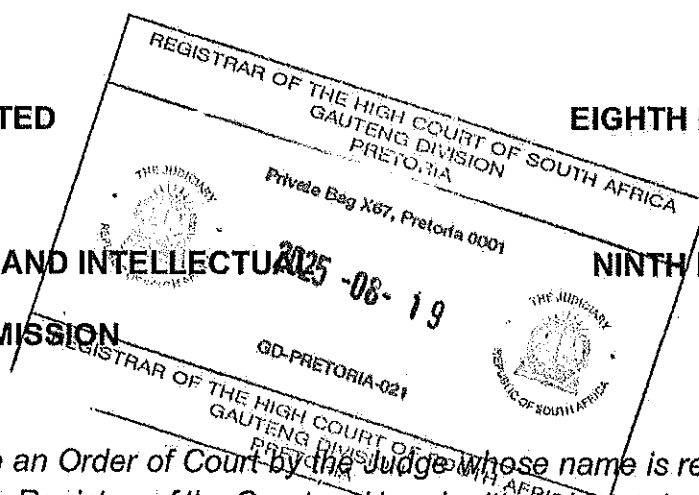
SEVENTH RESPONDENT

ABSA BANK LIMITED

EIGHTH RESPONDENT

**THE COMPANIES AND INTELLECTUAL
PROPERTY COMMISSION**

NINTH RESPONDENT

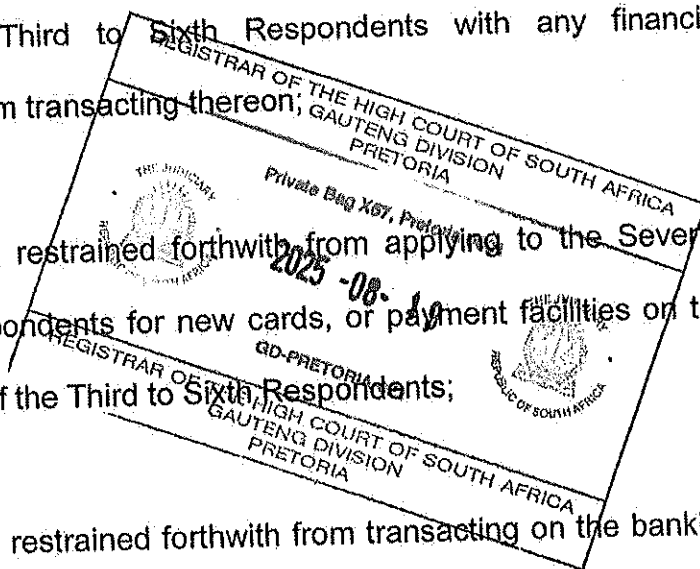


This Order is made an Order of Court by the Judge whose name is reflected hereon, duly stamped by the Registrar of the Court and is submitted electronically to the parties or their legal representatives by e-mail. This Order is further uploaded to the electronic file of this matter on CaseLines by the Judge or his/her Secretary/Registrar. The date of this Order is deemed to be 19th of August 2025.

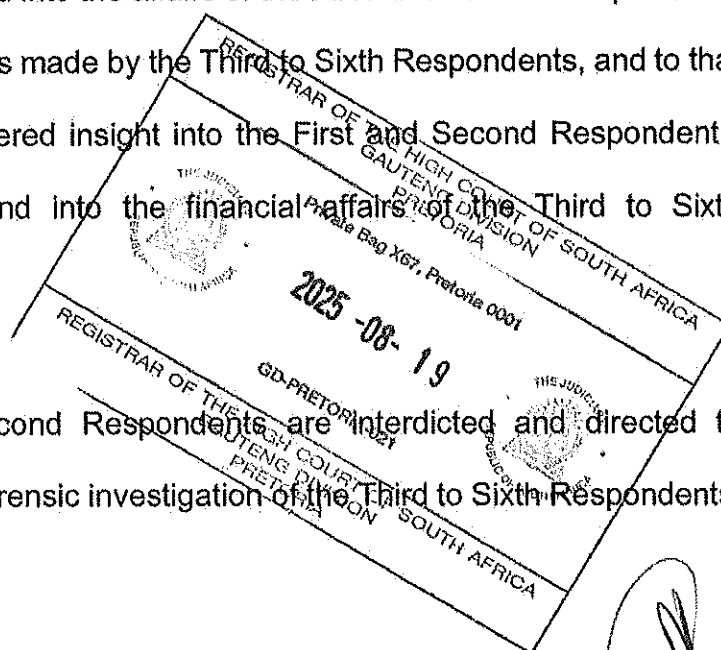
DRAFT ORDER

HAVING HEARD Counsel for the Applicant and having read the papers filed on record an order is granted in the following terms:

1. Having dispensed with the forms and service provided for in the Rules of this above Honourable Court and having disposed of the relief prayed by way of urgency in terms of Rule 6(12)(a);
2. Pending the final adjudication of the relief sought under **PART B** of the Notice of Motion, the First and Second Respondents:
 - 2.1 Are interdicted and directed to surrender forthwith to the Applicant their banking credit, and/or cheque, and/or debit cards, coupled to the banking accounts of the Third to Sixth Respondents, held with the Seventh and/or Eighth Respondents;
 - 2.2 Are interdicted and restrained forthwith from opening any new banking accounts for the Third to Sixth Respondents with any financial institution/s, and from transacting thereon;
 - 2.3 Are interdicted and restrained forthwith from applying to the Seventh and/or Eighth Respondents for new cards, or payment facilities on the banking accounts of the Third to Sixth Respondents;
 - 2.4 Are interdicted and restrained forthwith from transacting on the banking accounts of the Third to Sixth Respondents, held with the Seventh and/or Eighth Respondents;



- 2.5 The First and Second respondents are interdicted and restrained from dealing with the business (and the administration thereof) of the Third to Sixth Respondents, *and/or* their employees, *and/or* their partners, *and/or* their clientèle, in any manner in which any may sustain any prejudice;
- 2.6 The Applicant is authorised to take control of the financial affairs of the Third to Sixth Respondents, and to that end is entitled to immediately begin transacting on those accounts, for those corporations, to the exclusion of the First, and Second Respondents;
- 2.7 The Applicant is authorised to appoint necessary experts, including the accountant cited in the founding affidavit, at the cost of the Third to Sixth Respondents, so that a proper forensic investigation may be conducted into their affairs, and into the affairs of the First and Second Respondents relating to payments made by the Third to Sixth Respondents, and to that end to have unfettered insight into the First and Second Respondent's financial affairs, and into the financial affairs of the Third to Sixth Respondents ;
- 2.8 The First and Second Respondents are interdicted and directed to participate in the forensic investigation of the Third to Sixth Respondents, and to that end:



2.8.1 Are interdicted and restrained from concealing or destroying any documentary (and electronic) records pertaining to the financial administration of the Third to Sixth Respondents;

2.8.2 Are interdicted and directed to surrender forthwith to the Applicant all documentation (electronic, and otherwise) within their possession relating to the administration (financial and otherwise) of the Third to Sixth Respondents, and all login details and passwords to any banking and other online facilities relating thereto; *and to*

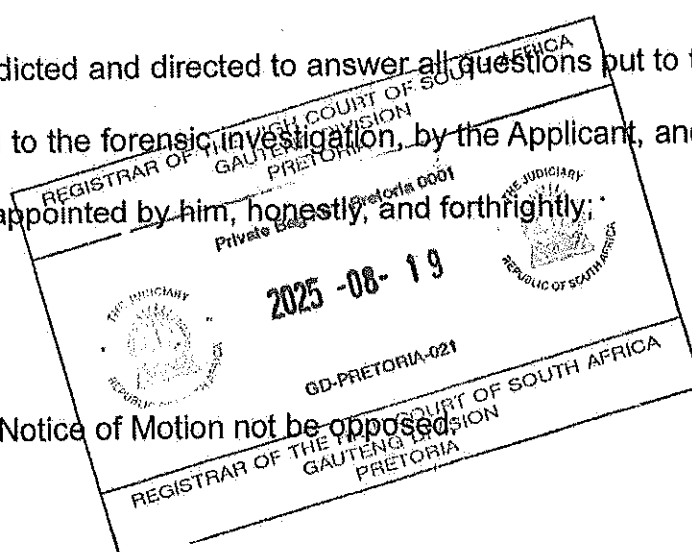
2.8.3 Are interdicted and directed to answer all questions put to them in regard to the forensic investigation, by the Applicant, and the experts appointed by him, honestly, and forthrightly;

3. Should **PART A** of the Notice of Motion not be opposed

3.1 No order as to costs;

3.2 The Applicant is permitted to supplement his papers, as he may deem necessary, for the purposes of **PART B** below;

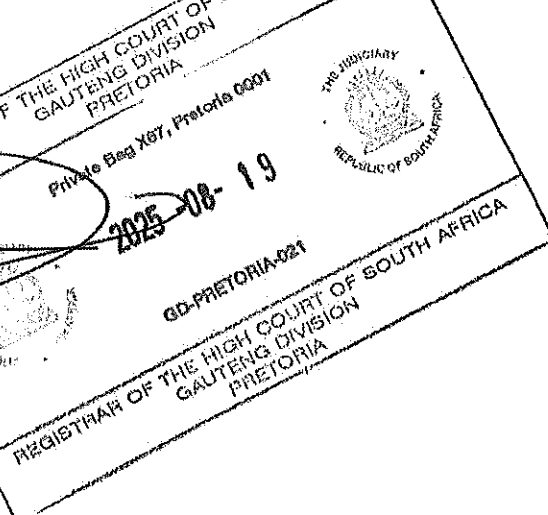
4. In the event that **PART A** of this Notice of Motion is opposed:



- 4.1 The costs thereof are reserved for determination under **PART B** of the Notice of Motion;
- 4.2 The Applicant, and the opposing Party/Parties are permitted to supplement their papers, as they may deem necessary, for the purposes of **PART B** below;
5. **PART B** shall be adjudicated on a date, and at a time appointed by the Registrar;
6. The Applicant is directed to serve this application on the Respondents simultaneously with the service of this Order upon them, and the Respondents are entitled to set the matter down, as per PART A, upon 48 hours notice to the Applicant, so that they may be heard in regard thereto.

BY ORDER:

REGISTRAR



For the applicant:

Adv M Coetsee

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